

wasting nature, and the tenant for life could not be compelled to preserve it against natural decay. A power to invest on *Government Annuities* would not justify the purchase of *Long Annuities*, and there is a similar difference between land and houses, the former being worth about thirty years purchase, and the latter much less, so that the tenant for life would be benefited at the expense of the remainderman (a).

11. **Ground rents.**—Even a purchase of *ground rents* of houses, though coming under the description in the trust deed of “hereditaments,” is not free from objection, for the object would of course be to procure for the tenant for life a higher income, but this would be at the cost of the remainderman in point of security. Should the houses be burnt down, and should the lessee have neglected to insure or the insurance monies not be forthcoming, the trustee might have nothing to show for the purchase but a worthless site, and then the remainderman might seek to hold him responsible as for a fraudulent execution of his trust in equity, though the purchase was within the words of the trust according to the letter (b). However, it has been held that the purchase of freehold ground rents reserved upon building leases for ninety-nine years is justifiable under a power to purchase “hereditaments in fee-simple in possession” (c).

12. **A timbered estate.**—Again, if a sum be given to be laid out in the purchase of an estate to be settled on a person for life *without impeachment of waste*, with remainders over, trustees should not purchase a *wood estate*, as the tenant for life, on being put into possession, could by a fall of the timber possess himself of a great part of the capital or *corpus* of the fund (d); and, on the contrary, if the tenant for life were *impeachable for waste*, he would lose the fruit of so much as was the value of the timber (e). But trustees may purchase an estate where the timber forms no over-

(a) See *Moore v. Walter*, 8 L. T. N. S. 448.

(b) See *Read v. Shaw*, Sugd. Powers, Append. 953; and see *Ib.* p. 864, 8th ed.; and *Middleton v. Pryor*, Amb. 393.

(c) *Re Peyton's Settlement*, 7 L. R. Eq. 463.

(d) See the subject discussed in *Burges v. Lamb*, 16 Ves. 174.

[(e) But see now 45 & 46 Vict. c. 38, s. 35, under which a tenant for life